

24CHCV04747 24CHCV04747

County: los-angeles

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Case Number: 24CHCV04747 Hearing Date: July 13, 2026 Dept: F49

Dept. F49

Date: 7/13/26

Case Name: Arutyun Khacheryan vs. General Motors, LLC;
and Does 1-10

Case No. 24CHCV04747

LOS ANGELES SUPERIOR COURT

NORTH VALLEY DISTRICT

DEPARTMENT F49

JULY 13, 2026

MOTION TO STRIKE
OR TAX COSTS

Los Angeles Superior
Court Case No. 24CHCV04747

Motion filed: 2/5/26

MOVING PARTY: Defendant General Motors, LLC

RESPONDING PARTY: Plaintiff Arutyun Khacheryan

NOTICE: OK

RELIEF REQUESTED: An order from this Court striking or taxing costs claimed by Plaintiff Arutyun Khacheryan in the amount of \$404.43.

TENTATIVE RULING: The motion is DENIED.

BACKGROUND

This action arises from alleged defects in a 2023 Chevrolet Silverado (the "Subject Vehicle") purchased by Plaintiff Arutyun Khacheryan ("Plaintiff") and manufactured by Defendant General Motors, LLC ("Defendant"). On December 23, 2024, Plaintiff filed the Complaint against Defendant and Does 1-10, alleging violation of the Song-Beverly Consumer Warranty Act. On February 6, 2025, Defendant filed an Answer.

On December 5, 2025, Plaintiff filed a Notice of Acceptance of Defendant's settlement offer. On December 15, 2025, the Court entered judgment for Plaintiff in the amount of \$40,000.00, plus attorney fees, costs, and expenses to be determined via noticed motion.

On January 23, 2026, Plaintiff filed a Memorandum of Costs, claiming total costs in the amount of \$1,709.40.

On February 5, 2026, Defendant filed the instant Motion to Strike or Tax Costs (the "Motion").

On June 29, 2026, Plaintiff filed an Opposition.

On July 6, 2026, Defendant filed a Reply.

ANALYSIS

A prevailing party in litigation may recover costs, including, inter alia: (1) filing, motion, and jury fees; (2) deposition costs; (3) ordinary witness fees; (4) fees of expert witnesses ordered by the court; (5) court reporter fees as established by statute; (6) fees for models and enlargements and photocopies of exhibits; (7) electronic filing and service fees; and (8) fees for a qualified court

interpreter authorized by the court. (Code Civ. Proc. §1033.5, subd. (a).)

A prevailing buyer in a

Song-Beverly action “shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney’s fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) Courts have interpreted the term “expenses” to cover items not specifically included in the statutory definition of “costs” under Code of Civil Procedure section 1033.5, permitting recovery of items disallowed by that section. (Jensen v. BMW of North America (1995) 35 Cal.App.4th 112, 137 [finding expert witness fees for experts not ordered by the court to be recoverable as “expenses”].)

A verified memorandum of costs is a

statement by the party, attorney, or agent that the costs are correct and were necessarily incurred in the case. (Cal. Rules of Court, rule 3.1700(a)(1).) Where the items in the verified memorandum appear proper, the memorandum is prima facie evidence that the expenses were reasonably incurred, and the burden is on the objecting party to present evidence showing that they are unreasonable. (Whatley-Miller v. Cooper (2013) 212 Cal.App.4th 1103, 1115.)

A. Motion to Tax Costs

Plaintiff’s verified Memorandum of Costs seeks the following costs:

Filing and motion fees: \$737.45

Deposition costs: \$650.00

Service of process: \$63.00

Attorney fees: “By Motion”

Other: \$258.94

The memorandum itemizes the expenses claimed in attached worksheets and includes invoices substantiating

the expenses. Upon review, the charges appear to be proper. The burden is accordingly on Defendant to submit evidence showing that they are unreasonable.

Defendant objects that \$404.43 of fees are not properly compensable, asserting that the following categories of fees are unreasonable: (1) \$175.22 in e-filing fees for Apex Legal's e-filing service, (2) \$148.18 in service and subpoena costs related to dealership discovery, (3) \$63.83 in "other" costs consisting of postage, printing, and photocopying, and (4) \$17.20 in filing fees to file the Notice of Acceptance of the settlement offer. (Mot., at pp. 4-5.)

(1)

Apex Legal Fees

Defendant argues that the Apex Legal Fees are vendor convenience fees that are unreasonable because they do not represent mandatory court filing fees. (Mot., at p. 4.) Defendant provides no authority to support the proposition that fees must be mandatory to be reasonable under the Song-Beverly Act. Defendant also fails to offer evidence establishing either that the costs are inflated or that the use of Apex Legal to accomplish electronic filing is unreasonable.

Defendant's contention that the fees should be disallowed as unnecessary "convenience" fees appears to rely on the language of Code of Civil Procedure section 1033.5, subdivision (c)(2), which requires an award of costs under that section to be "reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation." As discussed above, costs and expenses allowable under the Song-Beverly Act need only be "reasonably incurred," which is a broader standard than that of section 1033.5. Here, the invoices demonstrate that the costs were actually incurred, and the Court finds the use of an electronic filing service to accomplish filing of papers to be reasonable.

Moreover, as Plaintiff notes, electronic filing is mandatory under local rules for parties represented by counsel, so in addition to being reasonably incurred under Civil Code section 1794, subdivision (d), the fees were also reasonably necessary. (Los Angeles County Local Rule 3.4, subd. (a).) The Court DENIES the Motion as to these filing fees.

(2)

Dealership Discovery Fees

Defendant contends that the service and subpoena fees relating to discovery demanded from the dealership are not reasonably incurred because the dealership is not a party to the action, is not controlled by Defendant, and is represented by its own counsel. (Mot., at p. 4.) Defendant further argues that the subpoena activity did not advance Plaintiff's case and the deposition that Plaintiff noticed of the dealership did not take place. (Ibid.)

Plaintiff argues that the ultimate result that a deposition was not taken does not render service of a deposition subpoena unreasonable at the time it was served. (Opp'n, at p. 5.) The Court agrees, and Defendant does not support its arguments with evidence showing that, at the time the subpoenas were served, they were unreasonable. Notably, Defendant does not claim that the dealership possessed no relevant information, that the Subject Vehicle was never presented for repair at the dealership, or that a deposition of the dealership would not be reasonably calculated to lead to the discovery of admissible evidence. The Court accordingly finds that Defendant has not met its burden of showing that these costs are unreasonable. The Court DENIES the Motion as to these service and subpoena fees.

(3)

"Other" Costs

Defendant argues that "other" costs consisting of postage and photocopying are unnecessary or redundant because electronic filing and service were "available." (Mot., at p. 5.) Defendant further argues that, because the case did not go to trial, the costs are unrecoverable because they did not aid the trier of fact, continuing to rely on the narrow categories of costs allowable under Code of Civil Procedure section 1033.5 in challenging the expenses claimed. (Reply, at pp. 5-6.) Defendant again offers no evidence to refute the presumption that the expenses were reasonably incurred.

Plaintiff contends that the postage and photocopying costs assisted Plaintiff in serving, propounding, responding to, and processing the discovery completed in this action. (Opp'n, at p. 5.) In the absence of evidence otherwise, the Court finds these costs to be

reasonable.

(4)

Filing of the Notice of Acceptance

Finally, Defendant contends that the \$17.20 filing fee for filing the Notice of Acceptance of Defendant's settlement offer was duplicative of Plaintiff's filing of the Notice of Entry of Judgment. (Mot., at p. 5.) Defendant does not explain why it contends these filings are duplicative. Plaintiff asserts that the two filings served different purposes, explaining that the Notice of Acceptance memorialized Plaintiff's acceptance of the offer, placing it before the Court to permit entry of judgment, and that the Notice of Judgment triggered post-judgment procedures to establish the post-judgment timeline. (Opp'n, at p. 6.) Defendant offers no authority or evidence suggesting that the two filings do not accomplish different functions. The Court accordingly finds the fee to be reasonable.

The Motion is DENIED as to this filing fee.

CONCLUSION

Defendant General Motors, LLC's Motion to Tax Costs is DENIED.

Moving party to give notice.